NON-DISCLOSURE AGREEMENT

(Sample Version 1)

This Non-Disclosure Agreement (the "Agreement") is entered into as of January 1, 2024 (the "Effective Date") by and between:

COMPANY A INC. ("Disclosing Party")

Address: 123 Main Street, San Francisco, CA 94102

Email: contact@companya.com

and

COMPANY B LLC ("Receiving Party")

Address: 456 Oak Avenue, New York, NY 10001

Email: info@companyb.com

1. PURPOSE

The parties wish to explore a business opportunity (the "Purpose") and may need to disclose certain confidential information to each other.

2. DEFINITION OF CONFIDENTIAL INFORMATION

"Confidential Information" means all information disclosed by Disclosing Party to Receiving Party, whether orally or in writing, that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information and the circumstances of disclosure.

Confidential Information includes:

• Technical data and know-how

• Business strategies and plans

• Customer lists and information

• Financial information

• Product specifications

3. OBLIGATIONS

The Receiving Party agrees to:

a) Hold the Confidential Information in strict confidence

b) Not disclose the Confidential Information to third parties without prior written consent

c) Use the Confidential Information solely for the Purpose

d) Protect the Confidential Information with the same degree of care used for its own confidential information

4. EXCLUSIONS

Confidential Information does not include information that:

• Is publicly available through no breach of this Agreement

• Was rightfully in Receiving Party's possession before disclosure

• Is independently developed without use of Confidential Information

• Is rightfully obtained from a third party without restriction

5. TERM

This Agreement shall remain in effect for a period of three (3) years from the Effective Date.

6. RETURN OF MATERIALS

Upon request or termination of this Agreement, Receiving Party shall promptly return or destroy all Confidential Information and certify such destruction in writing.

7. NO LICENSE

Nothing in this Agreement grants any license or right to Receiving Party under any patent, copyright, trade secret, or other intellectual property right.

8. GOVERNING LAW

This Agreement shall be governed by the laws of the State of California.

9. ENTIRE AGREEMENT

This Agreement constitutes the entire agreement between the parties concerning the subject matter hereof.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

COMPANY A INC.

Signature: _____

Name: John Smith

Title: CEO

Date: January 1, 2024

COMPANY B LLC

Signature: _____

Name: Jane Doe

Title: President

Date: January 1, 2024